
This act summary is provided for the convenience of the public and members of the General Assembly. It is intended to provide a general summary of the act and may not be exhaustive. It has been prepared by the staff of the Office of Legislative Counsel without input from members of the General Assembly. It is not intended to aid in the interpretation of legislation or to serve as a source of legislative intent.

Act No. 178 (S.323). An act relating to miscellaneous agricultural subjects

Subjects: Agriculture; pesticides; hemp oversight; Concentrated Animal Feeding Operation Permit Program Working Group; miscellaneous subjects

This act makes several miscellaneous changes to laws pertaining to agricultural subjects. This act includes a technical correction regarding a milk producer's request for a hearing and enables the Farm-to-School Program to award contracts in addition to grants. This act repeals the interstate Pest Control Compact that has not been active since approximately 2014, makes changes to pesticide licenses and applicator examination requirements, and makes technical changes to seed law.

This act also consolidates the Vermont Agricultural Credit Program (VACP) within the Vermont Economic Development Authority (VEDA). VACP is currently administered by the Vermont Agricultural Credit Corporation that is administered by VEDA; this act dissolves the Vermont Agricultural Credit Corporation, and VEDA will administer VACP directly. This act makes technical and conforming changes but does not substantively alter VACP.

This act transitions oversight of hemp growing and processing, hemp products, and enforcement from the Agency of Agriculture, Food and Markets to the Cannabis Control Board. These sections largely preserve current law, make technical changes, and make some substantive changes to conform to evolving federal law that would redefine tetrahydrocannabinol concentration limits for hemp. The Cannabis Control Board will require annual licensure and fees for hemp producers, processors, and certain hemp products. Any person who causes unregistered hemp or unregistered cannabis products to be shipped to anyone other than a licensed cannabis laboratory in the State could be subject to criminal and civil penalties.

This act permits the Natural Resources Conservation Council to obtain mortgages to purchase property. The act also creates a Concentrated Animal Feeding Operation (CAFO) Permit Program Working Group to make recommendations for CAFO permitting. The act requires the Secretary of Natural Resources to hire a third-party consultant to provide training on CAFO permitting, but this requirement is contingent on a future appropriation for fiscal year 2027. This act also makes a technical correction to the statute governing the Farm and Forestry Operations Security Special Fund to clarify that it is the Secretary of Agriculture, Food and Markets, in consultation with the Review Board, that makes award determinations.

Multiple effective dates, beginning on June 18, 2026